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Environmental Working Group: California Lawmakers Pass Landmark Ban on Toxic Dyes in School Food

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WASHINGTON, Aug. 30 -- The Environmental Working Group issued the following news release on Aug. 29, 2024:

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Child safety bill heads to governor

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SACRAMENTO, Calif. - Today the California Legislature took a bold step to protect children's health by passing a bill that bans six harmful chemicals in school food.

The bipartisan bill prohibits these chemicals from food provided in the state's public schools during regular school hours.

Assembly Bill 2316, the California School Food Safety Act, championed by Assemblymember Jesse Gabriel (D-Encino), would ban Red Dye No. 40, Yellow Dye No. 5, Yellow Dye No. 6, Blue Dye No. 1, Blue Dye No. 2 and Green Dye No. 3 from such food.

The dyes have been found to cause neurobehavioral problems in some children (https://oehha.ca.gov/risk-assessment/press-release/report-links-synthetic-food-dyes-hyperactivity-and-other).

"California has a responsibility to protect our students from chemicals that harm children and that can interfere with their ability to learn," said Gabriel.

"As a lawmaker, a parent and someone who struggled with ADHD, I find it unacceptable that we allow schools to serve foods with additives that are linked to neurobehavioral harms," he continued. "This bill will empower schools to better protect the health and well-being of our kids and encourage manufacturers to stop using these harmful additives."

Last year, Gabriel successfully authored, and Gov. Gavin Newsom signed into law, the California Food Safety Act, which banned potassium bromate, propylparaben, brominated vegetable oil and Red 3 from food manufactured, delivered and sold in the state.

In 2021, the California Office of Environmental Health Hazard Assessment found that many food dyes and colorants, including the six covered by A.B. 2316, are known to make some children vulnerable to behavioral difficulties and decreased attention.

"Many children rely on school meals as a source of their daily nutrition and calorie intake," said Tasha Stoiber, Ph.D., Environmental Working Group senior scientist. "Kids deserve wholesome foods that don't hinder their ability to learn, and parents deserve the confidence that the schools they're sending their kids to aren't serving them food that may harm them."

EWG and Consumer Reports are co-sponsoring A.B. 2316. The bill will now go to Newsom's desk to be signed. If enacted, it will make California a leader in protecting students from harmful food chemicals.

Toxic chemicals

Thousands of chemicals are allowed for use in food sold in the U.S. Many that have been reviewed by the Food and Drug Administration have not been reevaluated for decades, even when new science is available. For instance:

* Red 40 has not been evaluated for health risks since 1971. Many studies show it may pose a risk to brain development in children, hyperactivity and even cancer.

* Yellow 5 has been approved for use since 1931. The FDA affirmed its use with good manufacturing practices in 1969.

* Yellow 6 was approved for use in 1931, and the FDA reaffirmed its approval in 1986.

* Blue 1 has been approved for use since 1931. The FDA hasn't taken another look at it since 1969.

* Blue 2 was last approved in 1983.

* Green 3 has been allowed for use since 1931 and hasn't been reaffirmed since 1982.

"Why do schools serve food containing these toxic dyes?" said Melanie Benesh, EWG's vice president for government affairs.

"We know these dyes are harmful to some children. We must safeguard this vulnerable group from exposure at school, where they eat meals and are expected to learn," Benesh said.

"We applaud state lawmakers for voting to remove these harmful dyes and colorants from these products," she added.

Children have lower tolerance levels to chemical exposure than adults, and their developing bodies make them especially vulnerable.

"Dangerous dyes that put kids at higher risk for hyperactivity and other neurobehavioral issues that get in the way of learning should not be allowed in food sold in schools," said Brian Ronholm

, director of food policy at Consumer Reports.

"Banning these harmful dyes from school foods will protect the health and well-being of kids in California. Consumer Reports applauds Assemblymember Gabriel for introducing this critical food safety legislation and urges Gov. Newsom to sign this bipartisan bill into law," he added.

Consumers consistently rank food chemical concerns ahead of other food safety issues. But the FDA does not adequately regulate additives.

"The FDA continues to fail to keep us safe from harmful chemicals in our food," said Benesh. "In the absence of federal leadership, states like California keep stepping up to ensure our safety from toxic chemicals in snacks and other food we and our families enjoy."

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The Environmental Working Group (EWG) is a nonprofit, non-partisan organization that empowers people to live healthier lives in a healthier environment. Through research, advocacy and unique education tools, EWG drives consumer choice and civic action.

Founded in 1936, Consumer Reports has a mission to create a fair and just marketplace for all. Widely known for

our rigorous research and testing of products and services, we also survey millions of consumers each year, report extensively on marketplace issues, and advocate for consumer rights and protections around safety as well as digital rights, financial fairness, and sustainability. CR is independent and nonprofit.

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Original text here: https://www.ewg.org/news-insights/news-release/2024/08/california-lawmakers-pass-landmark-ban-toxic-dyes-school-food

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